

No further filings have been made addressing the above issues. No supplemental or amended pleadings have been filed.

Disposition

The Court finds and rules as follows:

1. The Petition for Approval of Compromise is DENIED, without prejudice to resubmission once the above issues are addressed.
2. The Court shall issue the order after hearing.

5. 9:00 AM CASE NUMBER: C24-01160
CASE NAME: DENEA MARHX VS. INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
BIFURCATE TRIAL
FILED BY: INTERNATIONAL CHURCH OF THE FOURSQUARE GOSPEL
TENTATIVE RULING:

Defendant International Church of the Foursquare Gospel (“International Church”) filed a Motion to Bifurcate Discovery on May 1, 2026 (the “Motion to Bifurcate Discovery”). The Motion to Bifurcate Discovery was set for hearing on August 10, 2026. The motion is opposed.

Background

International Church seeks an order “bifurcating discovery in this action, such that further discovery is limited to the ministerial exception under the First Amendment,...” See Notice of Motion filed May 1, 2026.

Plaintiff Denea Marhx (“Plaintiff”) filed an opposition on July 28, 2026, including an opposition declaration.

Analysis

Since the filing of this motion, the Court has considered and denied International Church’s a motion for summary judgment. See Minute Order dated July 28, 2026. The Court addressed and rejected the International Church’s contentions that it was entitled to summary judgment as a matter of law that the Plaintiff as an employee within the scope of the ministerial exception. It found triable issues of fact on that issue.

Accordingly, the Court is not going to dispose of this action and the claims at issue before trial solely on the grounds of the purported ministerial exception. Therefore, the Court does not conclude that it would be appropriate or justified to divide the discovery into the “phases” as International Church proposes by this motion (the first proposed phase being discovery solely as to International Church’s affirmative defense that the ministerial exception bars Plaintiff’s employment claims).

Disposition

The Court further finds and orders as follows:

1. The Motion to Bifurcate Discovery is DENIED.
2. The moving party shall prepare the order after hearing.

6. 9:00 AM CASE NUMBER: C25-00882

CASE NAME: ANGELINA RUBIO VS. JOEL CASTANEDA

RE MOTION TO BE RELIEVED AS COUNSEL

FILED BY: COUNSEL FOR RUBIO, ANGELINA

TENTATIVE RULING:

Giorgio Cassandra and Lina M. McGurk of BD&J, PC (“Counsel”) filed a Motion to be Relieved as Counsel on July 2, 2026 (the “Motion to be Relieved as Counsel”). The Motion to be Relieved as Counsel was set for hearing on August 10, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Angelina Rubio (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship, including as a result of a failure to communicate and cooperate with Counsel. See Declaration filed July 2, 2026, ¶2. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶3.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court will issue the proposed order after hearing submitted with the moving papers.

7. 9:00 AM CASE NUMBER: C25-03263

CASE NAME: LILIA MENDOZA VARGAS VS. ALEX HERNANDEZ

STRIKE PLTFS PUNITIVE DAMAGES AND ATTORNEY FEES CLAIMS

FILED BY: HERNANDEZ, ALEX ANTHONY

TENTATIVE RULING:

Defendants Testex, Inc. and Alex Anthony Hernandez (“Defendants”) filed a Motion to Strike on March 27, 2026 (the “Motion to Strike”) regarding the Complaint filed by plaintiff Lilia Mendoza Vargas (“Plaintiff”). The Motion to Strike was set for hearing on August 10, 2026. The motion is unopposed.

Background

Defendants move to strike certain portions of the Complaint, the prayers for punitive damages and for an award of attorneys’ fees.

No opposition has been filed to the Motion to Strike.

Analysis

1. Punitive Damages

Defendants seek to strike certain portions of the Complaint praying for punitive damages, contending that the allegations regarding punitive damages are insufficient.